

[1 EDW. 8. & *Edinburgh Royal Maternity* [Ch. xvi.]
 1 GEO. 6.] *and Simpson Memorial*
Hospital Order Confirmation Act, 1937.



CHAPTER xvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Edinburgh Royal Maternity and Simpson Memorial Hospital. A.D. 1937.
 —
 [29th April 1937.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. & 1 Edw. 8. c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Edinburgh Royal Maternity and Simpson Memorial Hospital Order Confirmation Act 1937. Short title.

i.] *Edinburgh Royal Maternity* [1 EDW. 8. &
 and Simpson Memorial 1 GEO. 6.]
Hospital Order Confirmation Act, 1937.

A.D. 1937.

SCHEDULE.

EDINBURGH ROYAL MATERNITY AND
SIMPSON MEMORIAL HOSPITAL.

*Provisional Order to alter the date of transfer under the
Edinburgh Royal Maternity and Simpson Memorial
Hospital Order 1932 and for other purposes.*

WHEREAS the Edinburgh Royal Maternity and Simpson Memorial Hospital (hereinafter referred to as "the Hospital") established for the reception and treatment of maternity cases and purposes associated therewith is situated in Lauriston Place in the city of Edinburgh :

And whereas the accommodation and resources of the Hospital having become insufficient to meet the growing demands of the public upon its services and an extension of the Hospital not being practicable arrangements were made between the Hospital and the Royal Infirmary of Edinburgh (hereinafter referred to as "the Royal Infirmary") for the latter taking over the property and liabilities of the Hospital with a view to the carrying on of the same in new buildings to be erected for that purpose :

And whereas by the Edinburgh Royal Maternity and Simpson Memorial Hospital Order 1932 (hereinafter referred to as "the Order of 1932") it was provided inter alia that the Royal Infirmary should erect equip and thereafter maintain a wing or block of new buildings (hereinafter referred to as "the new buildings") for the reception and treatment of patients of the class received by the Hospital:

And whereas the Order of 1932 further provided that as at the date of transfer mentioned in the said Order the whole property and assets of the Hospital should pass to and be vested in the Royal Infirmary and that the Royal Infirmary should receive and become

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responsible for the accommodation and treatment of patients under the care of the Hospital and take over and continue to carry on the work of the Hospital and that the Hospital should be dissolved : A.D. 1937.
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And whereas owing to the difficulty in fixing the date at which the said new buildings would be completed the date of transfer was by the Order of 1932 fixed as the fifteenth day of May one thousand nine hundred and thirty-four or such earlier or later date as might be fixed by the Secretary of State :

And whereas there being no prospect of the new buildings being completed by the fifteenth day of May one thousand nine hundred and thirty-four the Secretary of State on the fourteenth day of March one thousand nine hundred and thirty-four by virtue of the powers conferred upon him by the Order of 1932 fixed the fifteenth day of May one thousand nine hundred and thirty-seven as the date of transfer under the said Order :

And whereas owing to circumstances beyond the control of the directors of the Hospital or the Royal Infirmary it will not be possible to complete the new buildings by the fifteenth day of May one thousand nine hundred and thirty-seven and it is expedient that a later date of transfer should be fixed as hereinafter in this Order provided :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary of State orders as follows :—

1.—(1) This Order may be cited for all purposes as the *Edinburgh Royal Maternity and Simpson Memorial Hospital Order 1937.* Short title and commencement.

(2) This Order shall commence and have effect on and from the date of the passing of the Act confirming this Order.

2. In this Order the several words and expressions to which meanings are assigned by the Order of 1932 other than the expression "the date of transfer" shall have Interpretation.

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A.D. 1937. the same respective meanings unless there be something
— in the context repugnant to such construction and the
following words shall have the meaning in this section
assigned to them (that is to say) :—

“ Order of 1932 ” means the Edinburgh Royal
Maternity and Simpson Memorial Hospital
Order 1932.

Alteration
of date of
transfer.

3.—(1) In section 2 (Interpretation) of the Order
of 1932 for the definition of “ the date of transfer ”
there shall be substituted the following definition :—

“ ‘ The date of transfer ’ means the fifteenth
“ day of May one thousand nine hundred and forty
“ or such earlier or later date as the Secretary of
“ State may fix on the joint application of the
“ directors and the Royal Infirmary.”

(2) Section 4 (As to date of transfer) of the Order of
1932 is hereby repealed and for that section the following
section shall be substituted :—

“ 4. The Secretary of State may on the joint
“ application of the directors and the Royal
“ Infirmary fix as the date of transfer such date
“ earlier or later than the fifteenth day of May one
“ thousand nine hundred and forty as he thinks
“ fit.”

(3) Any document issued by the Secretary of State
in pursuance of subsection (2) of section 4 as originally
enacted of the Order of 1932 shall not take effect and
shall be deemed not to have been issued.

Costs of
Order.

4. All costs charges and expenses of and incident to
or connected in any way with the preparing applying for
obtaining and confirming this Order or otherwise in
relation thereto shall be paid by the Hospital.

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